

Imam Hasan, The Myth of his Divorces



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An explanation of the unjust accusations against the 2nd Imam (a), and the source and fallacy of these allegations.

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Imam Hasan, 'The Myth of his Divorces'

Imam Hasan has been the victim of a most malicious propaganda for the last 1,250 years. He is portrayed as “fond of ease and quiet” by his admirers¹ and “the great divorcer” by his detractors²

Before looking at individual reports, it is important to find out when this allegation was put forward, by whom and why.

After a thorough study of these reports, I have found that the first man known to accuse Imam Hasan of “marrying and divorcing” was the 2nd Abbasid Khalifa, Mansur, who because of his dynastic policies was bent upon belittling Amir al-Mu'minin `Ali and his descendants.

It will help the readers to know how Abbasids came to power.

As Ameer `Ali writes in “Spirit of Islam”³, “the tragical fate of Husain and his children sent a thrill of horror through Islam; and the revulsion of feeling which it caused proved eventually the salvation of Faith ... It made the bulk of Moslems think of what the Master had done, and of the injuries which the children of his enemies were inflicting on Islam.”

By the beginning of the 2nd century of Hijra, "Persia, Irak and Hijaz, which had suffered most from the atrocities of the Bani-Ummayya, were honeycombed by secret organisations for the over-throw of the hated family. The Bani-Abbas were the most active in the movement to subvert the Umayyad rule, at first, perhaps, from a sincere desire to restore to the Fatimids their just rights, but afterwards in their own interests." [4](#)

When Bani Hashim were planning to overthrow the Umayyad dynasty, they first secretly called a meeting of all members of the clan. They decided that, if they succeeded, they would make Muhammad, Nafs al-Zakiyya (*Pure Soul*) Khalifa. Muhammad was son of Abdallah son of Hasan Muthanna son of Imam Hasan. Among those who made the bid were Abu'l-Abbas (*Saffah*) and Mansur.

Imam Ja'far al-Sadiq remained aloof from all these activities and told Abdallah (*father of Nafs al-Zakiyya*) that his son would not succeed; that Mansur would sit on the throne instead. Abdullah did not like this frankness and accused Imam Ja'far al-Sadiq of envy!

Anyhow the slogan of Rida aal-Muhammad (*to please the Descendants of the Prophet*) proved a success and people gathered behind the agents of Bani Hashim, thinking that they wanted to remove Bani Umayya and install a descendant of the Prophet as Khalifa. Bani Umayya were overthrown in 132 A.H.

But when the time came to install a Khalifa from Aal-Muhammad, the Abbasids forgot all their pledges and their bay'a to Muhammad Nafs al-Zakiyya. They put Abu'l-Abbas Saffah on the throne.

Abu'l-Abbas died after four years, and his brother Mansur came to power. Muhammad Nafs al-Zakiyya did not forget that Mansur was under obligation to accept him as Khalifa; neither could Mansur forget it. The solution, according to Muhammad Nafs al-Zakiyya, was to rise against Mansur. The solution, according to Mansur, was to annihilate all the descendants of Imam Hasan.

"The same fierce jealousy with which the Bani-Ummayya had pursued or persecuted the Bani-Fatima, characterised the conduct of Bani-Abbas towards the descendants of Muhammad. They had no claim to the Caliphate themselves; they made the affection of the people for the children of Fatima the means for their own elevation, and when they had attained the desired end they rewarded the Fatimids with bitter persecution." [5](#)

Mansur came to Medina in 144 A.H. and in one sweeping operation arrested all the family of Imam Hasan and took them to Baghdad. It is not the place to enumerate the torture – physical and mental – meted out to the descendants of Imam Hasan.

Now Mansur wanted to absolve himself from the legal, and moral obligations of that oath of allegiance. It was not only the question of his own conscience; he had to assure the public also that he was the constitutional and rightful Khalifa.

For this purpose, he gave a public address after that mass arrest, in which he shamelessly said:

“By God, we left the descendants of Abu Talib and the Khilafat; we did not interfere at all. `Ali ibn Abi Talib became Khalifa. After him Hasan ibn `Ali became Khalifa. By God, he did not deserve it. He was offered money, which he accepted; Mu'awiya sent him a message that he would make him his successor. So, Hasan abdicated the Khilafat and left the government and power. He left everything to Mu'awiya, and turned his attention, to women, *marrying one woman today, divorcing another one tomorrow*. He remained like this till he died in his bed.”[6](#)

The main theme of this address was that Muhammad Nafs al-Zakiyya had no claim of Khilafat because his great-grand-father, Imam Hasan, has relinquished this power.

Accordingly, he wrote a letter to Muhammad who was still at large and was gathering an army to fight against Mansur:

“The Khilafat of your ancestor (*Ali*) reached to Hasan; he sold it to Mu'awiya in consideration of money and cloth. Now, if you had any right in the Khilafat, you had already sold it and received its price.”

But Mansur knew that this line of argument solved only the immediate problem of the bay'a of Muhammad Nafs al-Zakiyya. It could not prevent one of the descendants of Imam Husain from claim to the Khilafat for himself. Therefore, he left no stone unturned to prove that the Fatimids were not entitled to the inheritance of the Holy Prophet at all; and that Bani' Abbas were the rightful heirs of the Holy Prophet.

In Arabia, prior to Islam, inheritance “was governed by the rule of agnacy.” It means that only those persons who were connected with the deceased 'through males' were recognised as entitled to take a share in his inheritance (*they are called 'agnatic relatives'*), and neither women nor persons connected to the deceased through them had any right of succession, (*they are called 'uterine relatives'*).

“Thus it was that whilst adopted sons and even slaves had rights, the children of daughters and sisters had no place in the customary rules which regulated succession.”[7](#)

Islam put an end to such affront to human nature, and in the Qur'an there are specific provisions for the succession of daughters, mothers and sisters.

But Mansur, in rank defiance of the Qur'an, revived the old custom of agnacy. Ameer `Ali writes:

“When the Abbasids succeeded in overthrowing the Umayyads, they found it necessary to legitimatise their title to the Caliphate, for the eyes of the Moslem world were still turned to the descendants of the Prophet as the rightful heirs to his temporal and spiritual heritage and in effecting this they found their chief support in the doctrine of agnacy. They claimed that as descendants of the Prophet's uncle, Abbas, they were his 'agnates' and as such had a better title than the descendants of his daughter Fatima. And this was the keystone of the fabric built up by the ablest monarch of the House of Abbas, Mansur, the

real founder of the Sunni Church.”[8](#)

And as a result, the Sunni Law still retains largely the customary rule of pre-Islamic Arabs. Ameer `Ali says:

“The rule of agnacy has thus remained, chiefly from dynastic reasons, a part of Sunni system. In early times it was strongly enforced as under the old Romans. If a person died without leaving any 'agnatic' relations but a daughter's or sister's child, his property did not go to the latter but escheated to the Caliph (*i.e. was taken over by the Caliph*). In 896 A.D. the Caliph Mutazid Billah abolished this cruel rule, and laid down that in the absence of sharers and agnates (*Asabah*) the “uterine relations” should succeed. And this has remained the law ever since.”[9](#)

But even after this half-hearted amendment, the uterine relations are placed in the last category, and it is only in the absence of sharers, agnates and (*even*) the emancipated that they receive any share in the inheritance.[10](#)

Thus this “ablest” monarch of the House of `Abbas contrived to silence Muhammad Nafs al-Zakiyya by alleging that Imam Hasan had sold his right of Khilafat; and then by an ingenious reversion to pre-Islamic custom, disinherited all descendants of Fatima for ever! But, as Ameer `Ali has pointed out, descendants of Fatima were also descendants of `Ali who, as the son of Abu Talib, was 'agnate relative' of the Holy Prophet (*connected to him by male relation*)!”

This is not the place to explain why Imam Hasan entered into treaty with Mu'awiya; nor do I want to comment upon the claim made by Muhammad Nafs al-Zakiyya that he was entitled to Khilafat “because he was a descendant of Fatima.”

The Imamate is based not on inheritance, but on “Appointment by Allah” through the Holy Prophet or the preceding Imam. Muhammad Nafs al-Zakiyya based his claim on falsity, and Mansur tried to answer him with a bigger falsity.

But in this conflict, the real sufferer proved to be Imam Hasan whose sacred name was made the object of the false propaganda that he married a woman today and divorced another tomorrow.

Bani Umayya had established a full-fledged department to fabricate “*ahadith*” to smear the names of Ahl al-bayt. But they were not as successful in their endeavours as Mansur was.

His rule of inheritance by agnates is still followed by the Sunni schools of Law; and his propaganda against Imam Hasan has even found its way into some Shi'a books.

Let us now look at these reports:

Some have reported 70 wives. Others have increased the number to 90. Still others have said 250 wives! The highest number is 300!

The first report of 70 wives is given by Abu'l-Hasan `Ali ibn Abdullah Al-Basri Al-Mada'ini, who died in 225 A.H. This man was a partisan of Bani Umayya – he was a freed slave of Sumra ibn Habib, an Umayyad.

Ubn Adi has said of him: He is not strong in Hadith. [11](#)

This Madaini does not say from where he got this number of 70.

The second report of 90 wives appears in *Nur al-Absar* of Shablanji who died in 1298 AH.

Reports of 250 and 300 wives are found in *Quwwat al-Qulub* [12](#) of Abu Talib Makki who died in 380 A.H. He writes:

“Hasan ibn `Ali married 250 wives; and it is said that 300 wives. `Ali was very much annoyed and grieved by it, because when Hasan divorced a woman, `Ali felt embarrassment before her family. `Ali used to say that 'Hasan is habitual divorcer; you people should not give your daughters to him.’ Then a man from the tribe of Hamdan said:

'O amir al-Mu'minin, by God, we will give him our daughters; and he may retain whomsoever he wishes and may divorce whomsoever he dislikes.' Hearing it, `Ali was very much pleased and recited the following poem:

“If I would be in-charge of any gate of Paradise I would tell the tribe of Hamdan, 'Enter into Paradise with peace.’”

“Imam Hasan had likeness of the Prophet in facial features as well as in manners and character. The Holy Prophet told him, 'O Hasan, you are like me in features and character and manners.' Also he said, 'Hasan is from me and Husain is from `Ali.'”

“Hasan, often married 4 wives in one sitting and then divorced 4 wives in one sitting.”

Now this man Abu Talib had become mad at the time of writing this book *Quwwat al-Qulub*. He went to Baghdad and people came to see him. When they heard his senseless talk, all went away, and avoided him. One of his savings of that time is that “None is more harmful for the people than their Creator.” The scholars have frankly said that he has written many things in that book which have no foundation at all.

These were the original reporters. All those who came after them have blindly copied from their books.

The fact is that it was impossible for Imam Hasan to marry so many wives even if he wanted to. All the narrations imply that he started this alleged pursuit of pleasure during the Khilafat of his father in Kufa. `Ali came to Kufa in 37 Hijra. Imam Hasan had at least three wives in Kufa.

1. Khawal Fazariya, who was the mother of Hasan Muthanna (*the grandfather of Muhammad Nafs al-Zakiyya*). She survived Imam Hasan. This marriage had taken place in Medina.

2. Umm Ishaq bint Talha. She was the mother of Husain Athram, Talha and Fatima. This marriage also had taken place in Medina. She survived Imam Hasan; and was later married to Imam Husain.

3. Ju'da bint Ash-ath. This marriage took place in Kufa and she also survived Imam Hasan. (*She poisoned him on instigation of Mu'aviya.*)

Islam allows a man to marry up to four women at any given time. As Imam Hasan already had three wives, who were with him up to the last day of his life, he could marry only one more woman at any time.

Bearing in mind this limitation, one can only regard the statement of Quwwat al-Qulub with amusement: "Often he (*Imam Hasan*) married 4 wives in one sitting and then divorced them in one sitting." How could he marry 4 wives in one sitting when he already had 3 wives?

Now suppose that he married a fourth wife, and then divorced her. As long as that divorced wife was in 'idda (*period of probation, normally 3 months*) she was counted legally his wife, and Imam Hasan could not marry another wife before expiry of her 'idda.

Let us, now, suppose that he married a woman. As divorce cannot be given in a month in which co-habitation has taken place, the earliest that that wife could be divorced was in next month; her 'idda continued for 3 months. Thus, four months passed before Imam Hasan could be free to marry another wife. One wife in four months gives us a maximum of 3 wives in a year. Supposing that Imam Hasan had no other work except marrying and divorcing, as Mansur said, and if we count from 37 A.H. up to his martyrdom at the beginning of 51 A.H. to get a period of 14 years, this will give us a maximum number of 42 possible marriages.

And the minimum alleged by these scholars is 70 wives!

After this clarification, there is no need for further comment upon these reports. Yet it is worthwhile to examine these reports a little more in order to show how absolutely unreliable they are.

Abu Talib Makki says: "Ali used to say that Hasan is a habitual divorcer; do not give him your daughters." The question is, why `Ali told people in public not to give Hasan their daughters? Had he, first, told Hasan not to divorce so much? If so, did Hasan disobey him? Nobody says that Hasan was, God forbid, a disobedient son. Even Abu Talib Makki admits that Hasan was like the Holy Prophet in facial features and in manners and character. Can a disobedient son be universally accepted as having the character and manner of the Holy Prophet?

Or did `Ali forbid people in public without first trying to restrain Hasan from this alleged behaviour?

Can `Ali be expected to do such a childish thing, degrading his heir-apparent in public, without first advising him accordingly? As both alternatives lead to absurdity, the only conclusion remains that this report was forged by someone who wanted to discredit both `Ali and Hasan by one fabrication.

The most amusing is the report of aforementioned Abu'l-Hasan al-Mada'ini who says: "When Hasan died, all his former wives came out in a group in his funeral procession, with open heads and bare feet, and they were shouting "We are the wives of Hasan!"

Who has ever heard of such a procession in Islamic society? What was the sense in shouting 'we are the wives of Hasan'? And how did their husbands of that time allow them to form that comic procession?

It will be interesting to see the gradual development of this propaganda.

First comes Mansur, in 144 A.H., declaring that Imam Hasan was 'marrying one woman today, divorcing another tomorrow.'

Then comes al-Mada'ini (died 225 A.H.) who gives a specific number of 70 and produces the procession of those divorced wives at the funeral.

Then al-Kafi (compiled in 326 A.H.) gives two 'Ahadith' that Imam Hasan divorced very much.

Then comes Abu Talib Makki (380 A.H.) who thought that 70 was not consistent with 'marrying a woman one day and divorcing another tomorrow'; so he increased the number to 250; still his mathematics was not satisfied, so he quoted an unknown source and finally said '300'.

Lastly comes the French historian, H. Lammens, who writes in 'Shorter Encyclopaedia of Islam':

"He (*Imam Hasan*) spent the best part of his youth in making and unmaking marriages; about a hundred are enumerated. (*Remember that Mansur had alleged this to happen after the treaty with Mu'awiya in the last ten years of Imam Hasan's life But this 'historian' antedates it to his youth! And so far as enumeration is concerned, only 14 are enumerated, not 100 as he alleges.*) These easy morals earned him the title mitlak 'the divorcer' and involved 'Ali in severe enmities." (*Now, on what authority this 'historian' has made this fantastic assertion? No evidence can be produced to support this allegation.*)

In another place he writes: that Imam Hasan proved that he was very extravagant. He built separate houses for all those wives; each had her retinue of servants and attendants. Even during the Khilafat of 'Ali when there was hardship and strict financial control, he used to spend money in the same way.

Did Rev. H. Lammens produce even a fabricated Hadith or report to show that Imam Hasan had built separate houses for all those (100!) wives with all the paraphernalia which he so willingly enumerates? The answer is 'NO'. It is just the product of his fertile imagination. It is these people who take upon themselves the task of producing 'authentic' history of Islam for the receptive minds of Westerners!

[1.](#) Ameer Ali in "Spirit of Islam"

[2.](#) Willi Frischaure in "The Aga Khans".

[3.](#) p.302

[4.](#) Spirit of Islam p.307.

[5.](#) Ibid, p.304.

- [6.](#) Al-Mas'udi; in Muruj al-Dhahab, Vol.3, p.226
- [7.](#) Ameer `Ali in 'Mohammedan Law', Vol.2, p.75
- [8.](#) Ibid, p.76
- [9.](#) Ibid
- [10.](#) Ibid, p.68
- [11.](#) Mizan al-I'tidal, Vol.2, p.232, Lisan al-Mizan, Vol.4, p.253
- [12.](#) Quwwat al-Qulub Vol. 2, p.246

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